

25NNCV04757 25NNCV04757

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Case Number: 25NNCV04757 Hearing Date: July 28, 2026 Dept: T

Dukhan

Flowers vs. Harbor Frieght Tools Inc.

Motion

for Terminating Sanctions

Moving Party: Defendant Harbor

Freight Tools USA, Inc. (erroneously sued as Harbor Frieght [sic] Tools Inc.)

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

On April 3, 2026, the Court granted Defendant Harbor

Freight Tools USA, Inc.'s ("Defendant") motion to compel Plaintiff Dukhan

Flowers' ("Plaintiff") responses to its

first sets of form interrogatories, special interrogatories, and requests for

production, and awarded monetary sanctions in the amount of \$250.00. (Min. Order, 4/3/26.) The Court ordered Plaintiff to provide

responses to this discovery within 30 days after Defendant's service of notice

of the ruling and to pay the monetary sanctions to counsel for Defendant within

this same period. (Ibid.) That same day, Defendant filed a proof of

service regarding this notice. (Notice

of Ruling, 4/3/26.)

Defendant now moves for terminating sanctions.

No opposition was filed.

MOVING

PARTY POSITION

Defendant argues that terminating

sanctions are warranted based on Plaintiff's failure to appear at any hearing or participate in discovery, including appearing at his noticed deposition and complying with the Court's order to respond to propounded discovery, following the filing of his complaint on July 7, 2025.

Defendant further argues that Plaintiff's noncompliance is willful and warrants terminating sanctions, given his persistent discovery abuses and the ineffectiveness of lesser sanctions to secure his compliance.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I.

Legal

Standard

"To the

extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose...sanctions against anyone engaging in conduct that is a misuse of the discovery process." (Code Civ. Proc. § 2023.030.) The court may impose a terminating sanction for misuse of the discovery process by any of the following: "(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process; (2) An order staying further proceedings by that party until an order for discovery is obeyed; (3) An order dismissing the action, or any part of the action, of that party; (4) An order rendering a

judgment by default against that party.”

(Code Civ. Proc. § 2023.030, subd. (d).)

A failure to respond or to submit to an authorized method of discovery,
or disobeying a

court order to provide discovery, constitutes a

misuse of the discovery process. (Code

Civ. Proc. § 2023.010, subds. (d), (g).)

“The

trial court may order a terminating sanction for discovery abuse ‘after

considering the totality of the circumstances: [the] conduct of the party to

determine if the actions were willful; the detriment to the propounding party;

and the number of formal and informal attempts to obtain the discovery.” (Los Defensores, Inc. v. Gomez (2014)

223 Cal. App. 4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal. App.

4th 1225, 1246.)

“Generally,

‘[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by
a history of abuse, and the evidence shows that less severe sanctions would not

produce compliance with the discovery rules, the trial court is justified in

imposing the ultimate sanction.’ [Citation.]” (Los Defensores, supra, 223 Cal.

App. 4th at p. 390, alteration in original.)

“Under

this standard, trial courts have properly imposed terminating sanctions when

parties have willfully disobeyed one or more discovery orders.” (Los Defensores, supra, 223

Cal.App.4th at p. 390 [citing Lang, supra, 77 Cal.App.4th at pp.

1244–1246]; see, e.g., Collisson & Kaplan v. Hartunian (1994)

21 Cal.App.4th 1611, 1617–1622 [affirming the trial court’s order

striking the answer based on defendants’ willful failure to obey the discovery

order]; Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d

481, 491, disapproved on other grounds in Garcia v. McCutchen (1997) 16

Cal.4th 469, 478, n. 4 [terminating sanctions imposed against the plaintiff for

failing to comply with a discovery order and for violating various discovery
statutes].)

II. Discussion

Per the declaration of defense counsel Bridget Hockaday, Plaintiff

has yet to provide any responses to Defendant’s first sets of form interrogatories,

special interrogatories, and requests for production, as ordered by the Court on April 3, 2026, despite receiving notice of the ruling via mail that same day. (Hockaday Decl. ¶¶ 5–7, Exhs. 3–4.) Nor has Plaintiff paid to defense counsel the monetary sanctions that were awarded by the Court in the same ruling. (Ibid.) The Court also notes that before moving to compel these responses, defense counsel attempted to confer with Plaintiff via email on December 19, 2025, and was informed by plaintiff that he would respond by the next week. (Id. ¶ 2.) In a subsequent telephone call on December 23, 2025, Plaintiff confirmed to defense counsel that he would provide his overdue discovery responses by December 26, 2025.

(Ibid.) However, Plaintiff failed to prove these responses, which ultimately resulted in the filing and granting of the underlying motion to compel.

Furthermore, Defendant served Plaintiff with a deposition notice on November 13, 2025, informing Plaintiff that his deposition would take place on January 8, 2026. (Hockaday Decl. ¶ 8, Exh. 5.)

In addition, during their call on December 23, 2025, counsel also reminded Plaintiff of his deposition date. (Id.

¶ 9.) However, Plaintiff failed to appear for his deposition on January 8, and Defendant recorded his nonappearance and incurred court reporter costs. (Ibid.)

Finally, the Court notes that Plaintiff has also failed to appear at any hearing in this action, including the Case Management Conference on June 5, 2026, and the hearing on the motion to compel on April 3, 2026. The Court further notes that since September 30, 2025, Plaintiff has only made one filing in this action, which was a notice of change of address filed on March 16, 2026, that took place during the pendency of the unopposed motion to compel.

Thus, after considering the totality of the circumstances, the Court finds that Defendant's unwillingness to comply with the Court's order was willful and detrimental to Defendant and that lesser sanctions have proved ineffective to secure his compliance.

Therefore,
Defendant's motion for terminating sanctions is granted.

RULING

Defendant's

Motion for Terminating Sanctions is GRANTED.

The

Court orders Plaintiff's complaint filed on July 7, 2025, dismissed with prejudice. Defendant to give notice.